

May Term 1833

Lovina Stephens

Heir of John Stephens This day comes Ansel Richmond Com missioner in this behalf appointed, and files his final report herein showing that Lovina Stephens the purchaser of the equitable interest of the widow and heirs of the said John Stephens in and to the above tract of land has paid him the sum of \$130.80 in full of principal and interest by her due on said loan, and which money having been deposited by the said Richmond into this Court. It is ordered that his proceedings in the premises as Com missioner be fully approved and confirmed. And it appearing to the satisfaction of the Court that the said Lovina Stephens has sold to Hannah Dawson all her right and title to said land by assignment and transfer of the certificate of the purchase of the said land to her executed by the said Com missioner. It is therefore upon the suggestion of the parties, Ordered that the said Jacob Whittinger named in Complainant's Bill named executor to the said Hannah Dawson, a deed for the said tract of land of the same tenor and effect that he was bound to execute to the said John Stephens, and thereupon the said Jacob Whittinger now here in Court produces a deed by him executed and acknowledged before Abraham Bowen a Justice of the peace of Union County, to the said Hannah Dawson, all of which is approved by the Court now here. It is further ordered that the said Lovina Stephens administratrix of the estate of the said John Stephens, pay and satisfy the costs in the above behalf incurred (except fifty cents which the said Jacob Whittinger is ordered to pay) in sixty days or he attaches.

On the Guardianship of the

Heirs of John Richardson dec'd This day comes Hannah Richardson into open Court and prays the Court to appoint her Guardian of the persons and Estate of John S. Richardson aged eighteen years August 18. 1832 Polly Ann aged 14 years February 27. 1833. James A. Richardson aged fourteen years May 3. 1833. Joseph Richardson aged 10 years May 19. 1832 and Hiram A. Richardson aged five years on October 13. 1832 children and heirs of John Richardson late of Union County deceased, and showing that their estate is probably worth four hundred and ten dollars: Whereupon It is ordered that the said Hannah Richardson be appointed Guardian of the persons and estate of the said John S. Polly Ann. James A. Joseph and Hiram A. Richardson until they respectively arrive to full age; and thereupon the said Hannah Richardson files a Bond as such in the penalty of eight hundred and twenty dollars which is approved, and being duly qualified Letters are awarded, and thereupon the said Guardian acknowledges to have received the amount due Joseph S. Richardson \$79.80; amount due James A. \$79.80; and due Polly Ann \$148.55; and due Hiram A. \$148.55; amount due John S. \$73.55; making in all \$530.25 with which she is charged.

And the Court adjourns.

John C. Burne

February Term 1834

(In the matter of the Guardianship of the heirs of William Mc Bride dec'd.) This day comes personally into open Court Catharine Mc Bride aged twenty years in November 1833 and prays the Court to appoint John Myers Guardian of her estate until she arrives to the age of twenty one years: and here now comes into open Court Berretta Mc Bride aged seventeen years in June 1833 and John Mc Bride aged fifteen years in October 1833 and pray the Court to appoint the said John Myers Guardian of their persons and estates until they arrive to the lawful age respectively: and the said John Myers now prays the Court to appoint him Guardian of the person and estate of William Mc Bride aged thirteen years in July 1833 all minor heirs of William Mc Bride deceased: Whereupon It is ordered that the said John Myers be and he is hereby appointed Guardian of the persons and estates of the minor heirs of William Mc Bride deceased, above named: as above prayed: and the said John Myers now files a Bond as such Guardian, in the penalty of two hundred dollars, with Thomas Wilson and Jesse Dunn securities which is approved, and Letters are thereupon awarded and issued and time is given.

(In the matter of the Guardianship of George Campbell) This day comes personally into open Court George Campbell and shews to the Court that he was fourteen years of age on the fourth day of March 1833, and that he has no estate, and prays the Court to appoint Thomas M. Smith Guardian of his person until he arrives to the age of twenty one years: Whereupon It is ordered that the said Thomas M. Smith be and he is hereby appointed Guardian of the said George Campbell as above prayed: who now files a Bond as such in the penalty of one hundred dollars with Jacob Phillips security which is approved and Letters are thereupon awarded and issued to him, and time is given.

(In the matter of the Estate of Jonathan Parsons) This day comes Baldwin Parsons Administrator and shews to the Court that he has received one hundred and forty two dollars rent of Saw Mill. (\$142.00) which added to the amount remaining as a charge against said administrator at attember Settlement being two hundred and fifty eight dollars. (Cash twenty three cents (\$258.23) makes the whole amount now charged against said administrator four hundred dollars and twenty three cents (\$400.23) and the said Administrator now files seven additional Vouchers of debts of the estate by him paid amounting to three hundred and fifty four dollars and six cents (\$354.06) and he now files his claim for services rendered in the settlement of said Estate for sixty six dollars and sixty two cents which is allowed and he now pays the Court expenses in the settlement of said estate, including the cost of a suit against the adm^r of said estate, in favor of Abraham Paterbaugh in all fourteen dollars ninety five and a half cents, all of which are ordered to be placed to his credit making his Credit in all four hundred and forty five

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the amount of notes accounts and cash on hand as contained in said Inventory: and the Court having also examined the said Bill of said estate filed on yesterday, it is ordered that the same be recorded, and that said Administrator be charged with the amount of said said Bill being three hundred and twenty eight dollars and fifty three cents (\$328.53) and time is given.

In the matter of the Estate of

Joseph Wingate Decd } This day comes Samuel Jonison and Nancy Wingate Administrators of said Estate, and file a report of the sale of part of the real estate of said decedent, which report is in these words and figures, to wit: (Report) which being examined it is ordered that the same be approved, and the said sale in all things fully confirmed. And that the said Samuel Jonison one of the administrators aforesaid make and execute to the said William Burras a good and sufficient deed for the said tract of land so sold to him as aforesaid, to make report of the same during the present term of this Court and time is given.

In the matter of the Guardianship

of the Minor Heirs of Lucy Mitchell decd } Now comes Robert Mitchell and files his petition herein, shewing among other things, that Lucy Mitchell late Lucy Maydon, departed this life leaving Sarah M. Mitchell aged fifteen years on June 15th 1834, Almer M. Mitchell aged thirteen years on February 4th 1834, Robert S. Mitchell aged eleven years on December 14th 1833, Emilia Mitchell aged nine years on November 25th 1833, Elizabeth Jane aged eight years on November 15th 1834, Martha Ann Mitchell aged five years on March ninth 1834 and Lucy Mitchell aged two years on February 7th 1834, her heirs at law: which petition is in these words and figures following, to wit: (Petition) which being examined, and the Court being satisfied that the matters therein set forth are truly stated: It is ordered that Isaac Coe be and he is hereby appointed Guardian of the persons and estate of the said minors until they arrive at lawful age respectively; and the said Isaac Coe now files a Bond as such Guardian with James M. Ray and William Sicks Securities, which is approved, and the said Guardian is now duly qualified, whereupon letters are awarded and filed to him and time is given.

Agel Waldo and wife,

vs
William M. Gill and others

Application for partition of Real estate

Now comes the said Applicants by their Attorney, and here now comes Calum Fletcher Esq. claim addition for the minor heirs of said Robert M. Gill deceased, and files the answer of said minors to the petition of said Agel Waldo and Jane his wife, which answer is in these words and figures following to wit: (here insert it.) Whereupon Joseph P. Marshall, Edward M. Langhlin and John W. King are appointed Commissioners to make partition of

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Samuel Johnson minor heirs of said David Johnson deceased, of whose persons and Estates Elizabeth Johnson above named is appointed Guardian, is paid to her the said Elizabeth as such Guardian: and she having received as widow of said deceased her third as above said: and the Court being satisfied that said estate has been fully administered. It is ordered that this be considered as a full and final adjustment and settlement thereof.

In the matter of the Guardianship
of the minor heirs of David and
Isaac Johnson deceased

Now comes Eliza Johnson aged 17 years on March 4. 1834 and David Johnson aged 15 years on September 1834 and Samuel Johnson aged 13 years on September 15. 1834 minor heirs of David Johnson decd and choose Elizabeth Johnson their mother Guardian of their persons and estates until they respectively arrive to lawful age: therefore it is ordered that said Elizabeth be and she is hereby appointed such Guardian, and she is also hereby appointed Guardian of the Estate of Eliza Ann Johnson aged about 7 years and Isaac Johnson aged about 5 years, minor heirs of Isaac Johnson deceased, until they respectively arrive to lawful age: she having filed an approved bond as such, in the penalty of two hundred and ten dollars, and she is now duly qualified as such whereupon letters are awarded and issued to her.

It is ordered that the said Elizabeth Guardian as aforesaid, be and she is hereby charged with the sum of ninety two dollars and sixty eight cents the amount of the estate of David Johnson decd this day paid to her, belonging to the above named Eliza, David, and Samuel Johnson; and also with the sum of twelve dollars and eighty nine and one third cents, the amount of said estate also paid to her, belong to the above named heirs of Isaac Johnson deceased, and further time is given herein.

In the matter of the application To sell real Estate
of Mary Adams and others

Now comes Lewis O. Neal, Patrick Batterson and James Batterson the appraisers above appointed herein, and file the following report and appraisement of said real estate to wit: (here insert it) whereby it appears that said land is appraised at nine hundred and sixty dollars. And thereupon the said Mary Adams Guardian as aforesaid, enters into, executes and files an approved bond herein in a penalty of double the value of the portion of said real estate belong to her said wards. It is therefore ordered and adjudged and decreed that said real estate be sold, by Lewis O. Neal who is hereby appointed Commissioner to effect such sale, who shall proceed after having first given three weeks notice of the said sale in the Indiana Journal, proceed to sell the said real estate, to wit, Section of the said North West quarter of Section thirty one Township fifteen Range five E. except twenty five and a half acres off the South end thereof; also twenty five and one half acres of the North end of West half of the North West quarter of Section 32 in the same Township and Range; upon the following terms, to wit, one third

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At the term of the Marion Probate Court, begun and held at the Court House in Indianapolis, on the second Monday in August, being the tenth day August A. D. one thousand eight hundred and thirty five Present Hon. John L. Henne Sol. Judge.

In the matter of the Estate of

John Gault deceased

Ordered that the Clerk of this Court pay out the money paid into this Court at the last term thereof, by the Court thereof, to the widow and heirs of said decedent according to their respective portions and rights thereof, or to their attorney or attorneys lawfully appointed and that said estate be then finally adjusted and settled, allowing the widow the one third thereof after deducting the several amounts by her herebefore received, and to each heir, share and share alike, deducting the several amounts herebefore received by them respectively.

Robert W. Hume a Guardian & Pet to sell real Estate.
of Elizabeth Hume

This day comes personally,

In the matter of the Estate of

John Gault deceased

It is ordered by the Court now here, that the money paid into this Court at the last term thereof, by George Bruce the administrator of said Estate, be paid out by the Clerk of this Court, to the widow and heirs of said decedent, according to their respective portions or rights thereof, or to their lawful attorney or attorneys or Guardian, that is to say, to the widow Sixty six dollars and fifty five cents, to Elizabeth Gault \$27.25 to Margaret Gault \$37.73 to Lucy Gault \$17.17 to Aaron Hume and Sidney his wife late Gault \$48.72 to Samuel W. Gault \$48.72, and that said estate be then finally adjusted and settled.

Received of Robert W. Hume Clerk of the Probate Court of the County of Marion Indiana, the sum of two hundred and nine dollars and seventy five cents, in full of the dividend of the Estate of John Gault deceased due his heirs, that is to say Elizabeth Gault \$27.25 Margaret Gault \$37.73 Lucy Gault \$17.17 Sidney Hume and Aaron his wife late Gault \$48.72 Samuel W. Gault \$48.72 which I receive in my own right and as attorney in fact and Guardian for the other heirs August 10th 1835

Samuel W. Gault

In the matter of the Guardianship
of James A. Richardson

This day comes personally into open Court Joseph Cook Guardian of the person and estate of said James A.